

Court No. - 37

Case :- WRIT - C No. - 35139 of 2017

Petitioner :- Vijay Pratap Nishad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Hanuman Deen

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the Electricity Department.

The petitioner contends that he has been unnecessarily burdened with a realization of the electricity bill, which does not concern the petitioner.

The facts on record indicates that a case of electricity theft has been registered against the petitioner under Section 135 of the Electricity Act. The remedy of the petitioner lies for either getting it compounded under Section 152 of 2003 Act or in case he is disputing any such assessment arising therefrom it is open to him to raise a dispute before the Executive Engineer in terms of the U.P.Electricity Supply Code, 2005.

We are not inclined to entertain this writ petition. Consigned to records with the said observations.

Order Date :- 8.8.2017

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